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CASE #	CASE NAME	HEARING NAME
CVRI2506870	MASCOTO vs WAWANESA GENERAL INSURANCE COMPANY	MOTION FOR SUMMARY JUDGMENT ON CROSS- COMPLAINT

Tentative Ruling:

Moving party: Respondent/Cross-Complainant Wawanesa General Insurance Company

Responding party: Claimant/Petitioner/Cross-Defendant Aaron Mascoto

This is an action for uninsured-motorist benefits. Claimant Aaron Mascoto (“Claimant”) proceeds as petitioner and cross-defendant. The amended petition for arbitration of uninsured motorist claim, filed 11/17/25, alleges that on 12/4/23, while Claimant was driving on I-10, a vehicle in front of him swerved to avoid a large box¹, his vehicle struck the box, and the impact caused his vehicle to roll over and crash into another vehicle. Claimant alleges that the box had just fallen from an unidentified white work truck, so the accident involved “the direct application of force” from an unknown vehicle through an uninterrupted chain of events. Accordingly, Claimant contends that his claim satisfies the “physical contact” requirement and requests an order compelling arbitration under his insurance’s uninsured motorist coverage.

The amended petition alleges that Claimant demanded arbitration on 11/3/25. Wawanesa General Insurance Company (“Wawanesa”) declined arbitration on 11/5/25 and filed a cross-complaint for declaratory relief on 12/23/25, seeking a declaration that Claimant did not satisfy the physical-contact requirement and therefore is not entitled to benefits or arbitration.

Now, Wawanesa moves for summary judgment, arguing that Claimant cannot prove an uninterrupted chain of events from a phantom vehicle to his car. Wawanesa asserts that Claimant’s testimony shows that he did not see a box in the white truck (which Claimant claims is the phantom vehicle), did not see a box fall from that truck, and first became aware of the box after the vehicle immediately ahead swerved to disclose the box in his lane of travel.

In opposition, Claimant argues that he has direct testimony, eyewitness testimony, and circumstantial evidence, all creating triable issues on: (1) whether there was actual contact with the box and (2) the box’s origin. Claimant cites his testimony under oath that “I hit the box.” He also cites another eyewitness’ (Ivan Ruiz’s) testimony that the box continued to move directly to Claimant’s vehicle after falling from the truck, satisfying the “in-motion” requirement. Claimant further points to his text to his supervisor minutes after the crash, stating, “I hit a box on the freeway.” He also texted his mom within 24 hours after the crash that “[t]he truck dropped stuff.” Claimant contends that the evidence reflects an uninterrupted chain of events that satisfies the

¹ Claimant later described that the box “was wide enough to take up most of the lane.” (See Compendium of Evidence (“COE”), Ex. 2, Mascoto’s 8/6/24 examination under oath, at 38:24.)

physical contact requirement. Claimant distinguishes Wawanesa's cited authorities and asserts that the box was moving, rather than having been laid in the road for an undetermined time.

In reply, Wawanesa argues that it now concedes that the box fell from the white truck based on the new evidence, i.e., Ruiz's 5/26/26 deposition. It argues that the court must now determine whether Claimant "struck the box." Wawanesa relies on Ruiz's testimony that he did not see Claimant's car hit the box, and that he later observed that the box was not impacted or damaged. Wawanesa asserts that Claimant cannot establish the threshold legal requirement that he made physical contact, and that further evidence (e.g. a chiro report) supports that Claimant swerved to avoid the box. Wawanesa argues that this later evidence defeats contact.

Trial is not set.

Analysis

Evidentiary Objections

Claimant submitted 4 objections to challenge: (1) the police report, based on hearsay and lacking foundation; (2) Claimant's settlement demand, based on relevance; (3) Wawanesa's response to Claimant's settlement demand, based on relevance and hearsay; and (4) Wawanesa's response to Claimant's arbitration demand, based on relevance, among others.

The court sustains objection no. 1 as the police report is not supported by a declaration establishing foundation. Third-party statements require their own hearsay exception. (Evid. Code, §§ 1200, 1220, 1271, 1280.) The court declines to consider objection nos. 2 to 4 as the analysis below does not rely on the challenged material.

The Motion

A defendant moving for summary judgment must show that a cause of action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a), (p)(2).) The moving party must support each material fact with admissible evidence cited in a separate statement. (CCP § 437c(b), (d).) Once the defendant has met that burden, the burden shifts to the Plaintiff to show that a triable issue of one or more material facts exists. (*Id.*, § (p)(2).) The court views the evidence in the light most favorable to the nonmoving party. (*Wiener v. Southcoast Childcare Centers, Inc.* (2004) 32 Cal.4th 1138, 1142.) Summary judgment shall not be granted based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence. (CCP § 437c(c).)

The real issue here is whether Claimant can satisfy the "physical contact" requirement for uninsured-motorist coverage.

Insurance Code section 11580.2 requires “physical contact of the automobile” for a claim involving an unidentified hit-and-run vehicle. (Ins. Code., § 11580.2.) The requirement of physical contact may be satisfied where an object carried by an unknown vehicle strikes the insured vehicle through “an uninterrupted chain” of events. (*Pham v. Allstate Insurance Co.* (1988) 206 Cal.App.3d at 1196-97, the court held that “a rock tumbling from the passing dump truck, [striking] the ground, and rebound[ing] into the windshield of the insured vehicle” satisfied the physical contact requirement[.]) There is physical contact “when either a part of a vehicle or an object which the vehicle is carrying strikes the insured or his vehicle.” (*Id.*, at 1198.) Conversely, the physical contact requirement is not satisfied where an insured later strikes an inert object that had fallen from a vehicle at an earlier time and had come to rest. (*Barnes v. Nationwide Mutual Insurance Co.* (1986) 186 Cal.App.3d at 543-45 [no physical contact where a box was “lying in the road” when the insured struck it.])

In this present case, Wawanesa has not met its initial burden. Its moving evidence establishes that Claimant did not see the box fall from the white truck. (Compendium of Evidence (“COE”), Ex. 2, Mascoto’s 8/6/24 examination under oath, at 39:3-8; 40:20-22). But that evidence does not establish that the box *did not fall* from the truck, that Claimant *did not strike* the box, or that the box was *stationary* when Claimant encountered it. Indeed, Wawanesa’s moving papers describe Claimant’s rollover accident as occurring “after striking a box on the freeway.” (See Wawanesa’s Motion, p. 1.)

Claimant presents evidence that he struck the box. During his examination under oath, Claimant testified: “I hit a box. I hit the box,” and “that’s where I struck the box.” (Tran Decl., Ex. 4, Mascoto’s 8/6/24 examination under oath, at 47:4-8.) He also testified the box was *moving* when he struck it. (*Id.*, 92:5-14.) Claimant’s contemporaneous text message to his supervisor “minutes after the INCIDENT” likewise states: “I hit a box on the freeway,” and “It spun me out of control.” (Mascoto Decl., ¶ 11, Ex. 2.) This evidence creates a triable issue whether Claimant made physical contact with a moving object that had fallen from an unidentified vehicle in front of him in an uninterrupted chain of events.

The court need not rely on the additional Ruiz excerpts submitted for the first time with Wawanesa’s reply to support its revised no-contact theory. Even if considered, Ruiz’s testimony would not eliminate the dispute. Ruiz said he *did not see* Claimant strike the box. However, he did not say that he saw Claimant *miss* it. His opinions that the box later appeared “stationary,” “looked intact,” and “hadn’t been smashed” do not conclusively negate physical contact. (Amato Reply Decl., Ex. 10, Ruiz Depo., at 39:19-40:18.) The records also reflect that Ruiz had not stopped his car to inspect the box. Instead, he testified that he saw only portions of the box out of his “driver’s side window” while passing it on its side, and “didn’t look back” to check on the other sides. (*Id.*, 52:21-54:15.) As presented, his account is not sufficient to contradict contact. Wawanesa also points to other reports, attempting to show that Claimant “swerved” to avoid the box. However, again, those would not necessarily contradict contact. A driver may attempt avoidance but still strike an object. In sum, even if all evidence was considered, the conflict with Claimant’s sworn testimony would still defeat summary judgment.

Summary

Deny the motion as a triable issue exists as to whether Claimant actually struck the box.